



**Our
Commitment
To You**

Welcome to Countrywide Surveying Services

**RICS Home Survey – Level 2 (survey
and valuation)**

Terms and Conditions



RICS Home Survey – Level 2 (survey and valuation) Terms and Conditions

Introduction

Welcome to Countrywide Surveying Services ('CSS') and thank you for your request to provide professional property advice.

The RICS Home Survey – Level 2 (survey and valuation) ('the 'Report') ('the Service') comprises **a survey and a valuation within one document** and this service is delivered in accordance with the Home Survey Standard (1st edition) the Royal Institution of Chartered Surveyors ('RICS') professional statement. The particular features of this service are detailed within this document and it is important you carefully read and understand these features and our Terms as they form the basis of the contract between us.

We would like to draw your attention in particular to the section below called 'Limitation of Liability', which limits the amount of damages you can recover from us in the event we are negligent, in breach of contract or for any other cause.

You have chosen this Report as being the most suitable for your requirements, having considered the available options which, are more fully described in the RICS "Helping you choose the right survey", "Description of the RICS Home Survey – Level 2 (survey and valuation)" and "Definition of levels" at Documents 1,2 and 3 of this document. We accept no responsibility for either your ultimate choice, which may not be in line with what we consider to be the most suitable level for the property in question, or any issues which might have been revealed had a more detailed level been chosen.

Please also note that if, upon arrival at the property, we consider that the chosen level is not suitable our surveyor will advise you in order to obtain further instructions. If those are to nevertheless continue with the level originally chosen, we shall do so but without any responsibility for those matters outlined above.

The Fee has been based on the description of the property provided by you or understood from our research. This may need to change if it is found:

- On arrival at the property that it differs substantially from the description provided/understood;
- It is outside the surveyor's experience or expertise to carry out the inspection and survey; and/or

- It would be in your best interests to instruct another level of survey (see Scope of Service/Features).

Enclosed are a number of important documents you should read carefully so that you are fully aware of the scope and limitations of the inspection and report. It is important you carefully read and understand these Terms as they form the basis of the contract between us. The documents below should help you decide whether or not the Service is best for you. We accept no responsibility for your choice and which may not be in line with what would be the most suitable product for the property in question. Should you require a more detailed report please see the RICS “Helping you choose the right survey”, “Description of the RICS Home Survey – Level 2 (survey and valuation)” and “Definition of levels” at Documents 1,2 and 3 of this document.

If you feel that you do not understand any aspect of the service, our Terms or the Report itself, we recommend that you discuss it with your professional advisor, who could be a solicitor, accountant, or other professional. Please contact us if you require further information on our services. You can find our contact details in Document 5.

We are regulated by the RICS and our surveyors are RICS qualified surveyors (AssocRICS, MRICS, FRICS) and will carry out the inspection based on the scope of services detailed in this document. A digital report is provided, signed on behalf of Countrywide Surveying Services (‘CSS’). Registered Office: 2nd Floor, Boundary House, 4 County Place, Chelmsford, Essex, United Kingdom CM2 0RE
Tel: 01908 465250

Document Contents

1. RICS Helping you choose the right survey

We offer a range of valuation and survey report services and we enclose the RICS Helping you choose the right survey document which outlines the range of options available to you.

2. Description of the RICS Home Survey – Level 2 (survey and valuation)

The RICS Home Survey – Level 2 (survey and valuation) you have requested is a licensed RICS service and is explained in more in detail in this document. It also incorporates the RICS Home Survey – Level 2 (survey and valuation) Standard Terms of Engagement.

3. Definition of levels (taken from RICS Home survey standard 1st edition, November 2019)

<https://www.rics.org/globalassets/rics-website/media/qualify/home-survey-standard-nov-2020.pdf>

4. CSS RICS Home Survey – Level 2 (survey and valuation) Terms and Conditions

We also include some additional information about our service and company which you should read.

5. CSS Cancellation Form

A brief form for you to complete if you change your mind and wish to cancel the Service you have chosen.

Document 1 - RICS Helping you choose the right survey

Helping you choose the right survey

Why do you need an RICS Home Survey? Because forewarned is forearmed. Choosing the right survey will help highlight any serious problems and advise you of the specific risks before you commit to the process of buying or selling a property. RICS has three different levels of survey (outlined overleaf). These can only be conducted by an RICS qualified surveyor. Reliable and cost effective, these reports carry the full weight of the Royal Institution of Chartered Surveyors – the industry's most respected authority on surveying.

Buying a home

It's important to remember that your mortgage lender's valuation report is not a survey. It merely tells your lender whether or not the property is reasonable security for your loan. An RICS survey will tell you the actual condition of the property. That's vital information that can be invaluable during price negotiations, and will also help you avoid expensive surprises after you've moved in. There is an option for an RICS Home Survey – Level 2 (with valuation) which, as the name suggests, also includes a valuation as a standard part of the service for your own purposes.

Selling a home

An RICS survey can be an aid to selling your home. It will show you any problems that may delay your sale or cause price reductions later in the process.

Staying at home

A survey of the current condition of your home will warn you of defects and help you avoid escalating repair and maintenance costs in the future.

Buying or selling? Survey your options

The RICS Home Survey – Level 1

Choose this report if you're buying or selling a conventional house, flat or bungalow built from common building materials and in reasonable condition. This service includes:

- a visual inspection that is less comprehensive than the RICS Home Survey – Level 2 and the RICS Home Survey – Level 3
- clear 'traffic light' ratings of the condition of different parts of the building, services, and the grounds, showing problems that may require varying degrees of attention
- a summary of risks to the building, people and grounds and.
- an assessment of the relative importance of the defects and problems.

No tests of the building fabric or services are undertaken.

The RICS Home Survey – Level 1 does not include advice on repairs or ongoing maintenance and it does not include a valuation.

Ask your surveyor for a detailed 'Description of the RICS Home Survey Level 1' document.

The RICS Home Survey – Level 2 (survey only)

Choose this report if you need more extensive information whilst buying or selling a conventional house, flat or bungalow, built from common building materials and in reasonable condition.

The focus is on assessing the general condition of the main elements of a property. This intermediate level of service includes a more extensive visual inspection of the building, its services and grounds, but still without tests.

Concealed areas normally opened or used by the occupiers are inspected if it is safe to do so (typical examples include roof spaces, basements and cellars). The report objectively describes the condition of the different elements and provides an assessment of the relative importance of the defects/problems.

Ask your surveyor for a detailed 'Description of the RICS Home Survey Level 2 (survey only) document.

The RICS Home Survey – Level 2 (survey and valuation)

As the RICS Home Survey – Level 2 above but includes:

- the surveyor's professional opinion on the 'market value' of the property
- an insurance reinstatement figure for the property
- a list of problems that the surveyor considers may affect the value of the property.

Ask your surveyor for a detailed 'Description of the RICS Home Survey Level 2 (survey and valuation) document.

The RICS Home Survey – Level 3

Choose this report if dealing with a large, older or run-down property, a building that is unusual or altered, or if you're planning major works. It costs more than the other RICS reports because it gives detailed information about the structure and fabric of the property. This service includes:

- a detailed visual inspection of the building, its services and the grounds and is more extensive than a survey level two
- Concealed areas normally opened or used by the occupiers are inspected if it is safe to do so (typical examples include roof spaces, basements and cellars)
- Although the services are not tested, they are observed in normal operation – in other words, they are switched on or off and/or operated where the occupier has given permission and it is safe to do so.

The report objectively describes the form of construction and materials used for different parts of the property. It describes the condition and provides an assessment of the relative importance of the defects/problems. Additionally, it should:

- describe the identifiable risk of potential or hidden defects in areas not inspected
- propose the most probable cause(s) of the defects based on the inspection

- outline the likely scope of any appropriate remedial work and explain the likely consequences of non-repair; and
- make general recommendations in respect of the priority and likely timescale for necessary work.

The surveyor may also be able to provide an estimate of costs for identified repairs if agreed with you in advance.

Ask your surveyor for a detailed 'Description of the RICS Home Survey Level 3' document.

Service features	Level 1	Level 2 (survey only)	Level 2 (survey and valuation)	Level 3
Describes the construction and condition of the property on the date of the inspection.	✓	✓	✓	✓
Aims to identify any problems that need urgent attention or are serious.	✓	✓	✓	✓
Aims to identify things that need to be investigated further to prevent serious damage.	✓	✓	✓	✓
Aims to tell you about problems that may be dangerous.	✓	✓	✓	✓
Aims to show up potential issues and defects, before any transaction takes place.	✓	✓	✓	✓
Aims to help you decide whether you need extra advice before committing to purchase		✓	✓	✓
Aims to enable you to budget for any repairs or restoration.		✓	✓	✓
Aims to advise you on the amount of ongoing maintenance required in the future.		✓	✓	✓
Provides a reinstatement cost to help you avoid under or over-insurance.			✓	
Provides a market valuation.			✓	
Aims to establish how the property is built, what materials are used and how these will perform in the future				✓
Aims to describe visible defects, plus exposing potential problems posed by hidden defects.				✓
Aims to outline the repair options and give you a repair timeline, whilst explaining the consequences of not acting.				✓
Where practical and agreed, provides an estimate of costs for identified repairs.				✓
Provides specific comments on energy efficiency.				✓

Document 2 - Description of the RICS Home Survey – Level 2 (survey and valuation)

The service

The RICS Home Survey – Level 2 (survey and valuation) service includes:

- a physical inspection of the property (see The inspection below)
- a report based on the inspection (see The report below) and
- a valuation, which is part of the report (see The valuation below).

The surveyor who provides the RICS Home Survey – Level 2 (survey and valuation) service aims to give you professional advice to help you to:

- make an informed decision on whether to go ahead with buying the property
- make an informed decision on what is a reasonable price to pay for the property
- take into account any repairs or replacements the property needs, and
- consider what further advice you should take before committing to purchasing property.

Any extra services provided that are not covered by the terms and conditions of this service must be covered by a separate contract.

The inspection

The surveyor inspects the inside and outside of the main building and all permanent outbuildings, recording the construction and significant visible defects that are evident. This inspection is intended to cover as much of the property as is physically accessible. Where this is not possible, an explanation is provided in the 'Limitations on the inspection' box in the relevant section of the report.

The surveyor does not force or open up the fabric of the building. This includes taking up fitted carpets, fitted floor coverings or floorboards; moving heavy furniture; removing the contents of cupboards, roof spaces, etc.; removing secured panels and/or hatches; or undoing electrical fittings.

If necessary, the surveyor carries out parts of the inspection when standing at ground level, from adjoining public property where accessible. This means the extent of the inspection will depend on a range of individual circumstances at the time of inspection, and the surveyor judges each case on an individual basis.

The surveyor uses equipment such as a damp meter, binoculars and torch, and uses a ladder for flat roofs and for hatches no more than 3m above level ground (outside) or floor surfaces (inside) if it is safe to do so.

If it is safe and reasonable to do so, the surveyor will enter the roof space and visually inspect the roof structure with attention paid to those parts vulnerable to deterioration and damage. Although the surveyor does not move or lift insulation material, stored goods or other contents.

The surveyor also carries out a desk-top study and makes oral enquiries for information about matters affecting the property.

Services to the property

Services are generally hidden within the construction of the property. This means that only the visible parts of the available services can be inspected, and the surveyor does not carry out specialist tests. The visual inspection cannot assess the efficiency or safety of electrical, gas or other energy sources; plumbing, heating or drainage installations (or whether they meet current regulations); or the inside condition of any chimney, boiler or other flue.

Outside the property

The surveyor inspects the condition of boundary walls, fences, permanent outbuildings and areas in common (shared) use. To inspect these areas, the surveyor walks around the grounds and any neighbouring public property where access can be obtained. Where there are restrictions to access (e.g. a creeper plant prevents closer inspection), these are reported and advice is given on any potential underlying risks that may require further investigation.

Buildings with swimming pools and sports facilities are treated as permanent outbuildings and are therefore inspected, but the surveyor does not report on the leisure facilities, such as the pool itself and its equipment internally and externally, landscaping and other facilities (for example, tennis courts and temporary outbuildings).

Flats

When inspecting flats, the surveyor assesses the general condition of the outside surfaces of the building, as well as its access areas (for example, shared hallways and staircases that lead directly to the subject flat) and roof spaces, but only if they are accessible from within and owned by the subject flat. The surveyor does not inspect drains, lifts, fire alarms and security systems.

External wall systems are not inspected. If the surveyor has specific concerns about these items, further investigation will be recommended before making a legal commitment to purchase. Until these investigations are completed, the surveyor may not be able to provide you with a market valuation figure.

Dangerous materials, contamination and environmental issues

The surveyor does not make any enquiries about contamination or other environmental dangers. However, if the surveyor suspects a problem, they should recommend further investigation.

The surveyor may assume that no harmful or dangerous materials have been used in the construction, and does not have a duty to justify making this assumption. However, if the inspection shows that such materials have been used, the surveyor must report this and ask for further instructions.

The surveyor does not carry out an asbestos inspection and does not act as an asbestos inspector when inspecting properties that may fall within The Control of Asbestos Regulations 2012 ('CAR

2012'). However, the report should properly emphasise the suspected presence of asbestos containing materials if the inspection identifies that possibility.

With flats, the surveyor assumes that there is a 'dutyholder' (as defined in CAR 2012), and that there is an asbestos register and an effective management plan in place, which does not present a significant risk to health or need any immediate payment. The surveyor does not consult the dutyholder.

The report

The surveyor produces a report of the inspection results for you to use, but cannot accept any liability if it is used by anyone else. If you decide not to act on the advice in the report, you do this at your own risk. The report focuses on matters that, in the surveyor's opinion, may affect the value of the property if they are not addressed. The report objectively describes the condition of the elements and provides an assessment of the relative importance of the defects/problems. Although it is concise, the RICS Home Survey – Level 2 (survey and valuation) does include advice about repairs or any ongoing maintenance issues. Where the surveyor is unable to reach a conclusion with reasonable confidence, a recommendation for further investigation should be made.

Condition ratings

The surveyor gives condition ratings to the main parts (the 'elements') of the main building, garage and some outside elements. The condition ratings are described as follows:

- Condition rating 3 – Defects that are serious and/or need to be repaired, replaced or investigated urgently. Failure to do so could risk serious safety issues or severe long-term damage to your property. Written quotations for repairs should be obtained prior to legal commitment to purchase.
- Condition rating 2 – Defects that need repairing or replacing but are not considered to be either serious or urgent. The property must be maintained in the normal way.
- Condition rating 1 – No repair is currently needed. The property must be maintained in the normal way.
- NI – Elements not inspected.

The surveyor notes in the report if it was not possible to check any parts of the property that the inspection would normally cover. If the surveyor is concerned about these parts, the report tells you about any further investigations that are needed.

Energy

The surveyor has not prepared the Energy Performance Certificate (EPC) as part of the RICS Home Survey – Level 2 (survey and valuation) service for the property. Where the EPC has not been made available by others, the most recent certificate will be obtained from the appropriate central registry where practicable. If the surveyor has seen the current EPC, they will review and state the relevant energy efficiency rating in this report. In addition, as part of the RICS Home Survey – Level 2 (survey and valuation) service, checks are made for any obvious discrepancies between the EPC and the subject property, and the implications are explained to you.

Issues for legal advisers

The surveyor does not act as a legal adviser and does not comment on any legal documents. If, during the inspection, the surveyor identifies issues that your legal advisers may need to investigate further, the surveyor may refer to these in the report (for example, to state you should check whether there is a warranty covering replacement windows).

This report has been prepared by a surveyor merely in their capacity as an employee or agent of a firm, company or other business entity ('the Company'). The report is the product of the Company, not of the individual surveyor. All of the statements and opinions contained in this report are expressed entirely on behalf of the Company, which accepts sole responsibility for them. For their part, the individual surveyor assumes no personal financial responsibility or liability in respect of the report, and no reliance or inference to the contrary should be drawn.

In the case of sole practitioners, the surveyor may sign the report in their own name, unless the surveyor operates as a sole trader limited liability company.

Nothing in this report excludes or limits liability for death or personal injury (including disease and impairment of mental condition) resulting from negligence.

Risks

This section summarises defects and issues that present a risk to the building or grounds, or a safety risk to people. These may have been reported and condition rated against more than one part of the property, or may be of a more general nature. They may have existed for some time and cannot be reasonably changed. If the property is leasehold, the surveyor gives you general advice and details of questions you should ask your legal advisers. The RICS Home Survey – Level 2 (survey and valuation) report will identify and list the risks, and explain the nature of these problems.

The valuation

The surveyor gives an opinion on both the market value of the property and the reinstatement cost at the time of the inspection (see Reinstatement cost below).

Market value

Market value is the estimated amount for which an asset or liability should exchange on the valuation date between a willing buyer and a willing seller in an arm's length transaction, after proper marketing wherein the parties had each acted knowledgeably, prudently and without compulsion.

When deciding on the market value, the surveyor also makes the following assumptions.

The materials, construction, services, fixtures and fittings, and so on

The surveyor assumes that:

- an inspection of those parts that have not yet been inspected would not identify significant defects
- no dangerous or damaging materials or building techniques have been used in the property
- there is no contamination in or from the ground, and the ground has not been used as landfill
- the property is connected to, and has the right to use, the mains services mentioned in the report and

- the valuation does not take into account any furnishings, removable fittings and sales incentives of any description.

Legal matters

The surveyor assumes that

- the property is sold with 'vacant possession' (your legal advisers can give you more information on this term)
- the condition of the property, or the purpose that the property is or will be used for, does not break any laws
- no particularly troublesome or unusual restrictions apply to the property, the property is not affected by problems that would be revealed by the usual legal enquiries, and all necessary planning and Building Regulations permissions (including permission to make alterations) have been obtained and any works undertaken comply with such permissions, and
- the property has the right to use the mains services on normal terms, and the sewers, mains services and roads giving access to the property have been 'adopted' (that is, they are under local authority, not private, control).

The surveyor reports any more assumptions that have been made or found not to apply. If the property is leasehold, the general advice referred to earlier explains what other assumptions the surveyor has made.

Reinstatement cost

Reinstatement cost is the cost of rebuilding an average home of the type and style inspected to its existing standard, using modern materials and techniques, and by acting in line with current Building Regulations and other legal requirements. This includes the cost of rebuilding any garage, boundary or retaining walls and permanent outbuildings, and clearing the site. It also includes professional fees, but does not include VAT (except on fees). The reinstatement cost helps you decide on the amount of buildings insurance cover you will need for the property.

Standard terms of engagement

1. The service – the surveyor provides the standard RICS Home Survey – Level 2 (survey and valuation) service described in this section, unless you agree with the surveyor in writing before the inspection that the surveyor will provide extra services. Any extra service will require separate terms of engagement to be entered into with the surveyor. Examples of extra services include:

- o costing of repairs
- o schedules of works
- o supervision of works
- o re-inspection
- o detailed specific issue reports and
- o market valuation (after repairs).

2. The surveyor – The service will be provided by an AssocRICS, MRICS or FRICS member of the Royal Institution of Chartered Surveyors (RICS) who has the skills, knowledge and experience to survey and report on the property. Where the surveyor is also providing a valuation of the property, they have the skills, knowledge and experience to provide such a valuation, and are a member of the RICS Valuer Registration scheme.

3. Before the inspection – Before the inspection, you should tell us if there is already an agreed or proposed price for the property, and if you have any particular concerns about the property (such as a crack noted above the bathroom window or any plans for extension).

4. Terms of payment – You agree to pay our fee and any other charges agreed in writing.

5. Cancelling this contract – You should seek advice on your obligations under The Consumer Contracts (Information, Cancellation and Additional Charges) Regulations 2013 ('the Regulations') and/or the Consumer Rights Act 2015 in accordance with section 2.6 of the current edition of the Home survey standard RICS professional statement.

6. Liability – the report is provided for your use, and the surveyor cannot accept responsibility if it is used, or relied upon, by anyone else.

Note: These terms form part of the contract between you and the surveyor.
This report is for use in the UK.

Complaints handling procedure

The surveyor will have a complaints handling procedure and will give you a copy if you ask for it. The surveyor is required to provide you with contact details, in writing, for their complaints department or the person responsible for dealing with client complaints. Where the surveyor is party to a redress scheme, those details should also be provided. If any of this information is not provided, please notify the surveyor and ask for it to be supplied.

Document 3 – Definition of levels (taken from RICS Home survey standard 1st edition, November 2019)

<https://www.rics.org/globalassets/rics-website/media/qualify/home-survey-standard-nov-2020.pdf>

Definition of levels

As described in section 2.5, RICS members must ensure their service is clearly ‘benchmarked’ against one of the defined levels in this appendix.

Note: These levels are not prescriptive or detailed. Instead they provide enough detail to enable the nature of the service to be identified while maintaining sufficient flexibility for RICS members to innovate and respond to changes in the market.

Please note Home Report Scotland variations apply. Refer to the current edition of *The Home Report, Scotland*, RICS guidance note.

A1 Survey level one

This service is designed for clients (buyers, sellers and owners) seeking a professional and objective report on the condition of the property at an economic price. As a result, it is less comprehensive than survey level two and survey level three.

This level of service includes a visual inspection that is less extensive than for the other survey levels. No tests of the building fabric or services are undertaken. The report objectively describes the condition of the building, its services and the grounds. It highlights relevant legal issues and any obvious risks to the building, people or grounds.

The report is succinct and provides an assessment of the relative importance of the defects and problems. Where the surveyor is unable to reach a conclusion with reasonable confidence, a recommendation for further investigation should be made.

A survey level one report does not include advice on repairs or ongoing maintenance and this, combined with the less extensive inspection, usually means it is better suited to conventionally built, modern dwellings in satisfactory condition. It will not suit older or complex properties, or those in a neglected condition.

A2 Survey level two

This level of service is for clients who are seeking a professional opinion at an economic price. It is, therefore, less comprehensive than a level three service. The focus is on assessing the general condition of the main elements of a property.

This intermediate level of service includes a more extensive visual inspection of the building, its services and grounds, but still without tests. Concealed areas normally opened or used by the occupiers are inspected if it is safe to do so (typical examples include roof spaces, basements and cellars). The report objectively describes the condition of the different elements and provides an assessment of the relative importance of the defects/problems. At this level, although it is concise, the report does include advice about repairs and any ongoing maintenance issues. Where the surveyor is unable to reach a conclusion with reasonable confidence, a recommendation for further investigations should be made.

This level of service suits a broader range of conventionally built properties, although the age and type will depend on the knowledge and experience of the RICS member.

This level of service is unlikely to suit:

- complex buildings, for example those that have been extensively extended and altered
- unique or older historic properties – although survey level two services may be appropriate for some older buildings, the decision will depend on the RICS member's proven competence and knowledge and the nature of the building itself. For example, a survey level two report on homes with traditional timber frames or those built much before 1850 is likely to be inconclusive and be of little use to the client or
- properties in neglected condition.

In such cases, a survey level two service will often result in numerous referrals for further investigations, an outcome that many clients find disappointing. Where the client is planning to carry out extensive repair and refurbishment work in the future, the RICS member should give advice on suitable additional services.

A3 Survey level three

This level of service is for clients who are seeking a professional opinion based on a detailed assessment of the property.

The service consists of a detailed visual inspection of the building, its services and the grounds and is more extensive than a survey level two. Concealed areas normally opened or used by the occupiers are inspected if it is safe to do so (typical examples include roof spaces, basements and cellars). Although the services are not tested, they are observed in normal operation – in other words, they are switched on or off and/or operated where the occupier has given permission and it is safe to do so.

The report objectively describes the form of construction and materials used for different parts of the property. It describes the condition and provides an assessment of the relative importance of the defects/problems. Additionally, it should:

- describe the identifiable risk of potential or hidden defects in areas not inspected
- propose the most probable cause(s) of the defects based on the inspection
- outline the likely scope of any appropriate remedial work and explain the likely consequences of non-repair

- make general recommendations in respect of the priority and likely timescale for necessary work and
- give an indication of likely costs (this aspect would not normally form part of the level three service, but some RICS members may choose to include it). Where costings are included, this must be reflected in the terms and conditions.

Where an RICS member feels unable to reach the necessary conclusions with reasonable confidence, they should refer the matter for further investigations. However, at survey level three such referrals should be the exception rather than the rule. A survey level three report should aim to provide the client with all the information they need to make a decision.

This level of service will suit any domestic residential property in any condition depending on the competence and experience of the RICS member

Document 4 - CSS RICS Home Survey – Level 2 (survey and valuation) Terms and Conditions

The RICS Home Survey – Level 2 (survey and valuation) is a RICS licensed product and is presented in a prescribed format with standard terms. This document sets out additional information about the service we provide.

This service is delivered in accordance with the Home Survey Standard (1st edition) RICS professional statement. The particular features of this service are detailed within this document.

Valuation

A valuation will be undertaken in accordance with the current version of the RICS Red Book. The date of valuation will be the same as the date of the report. It is essential that we know the purpose of valuation so that you receive a report that meets your needs and we can decide on whether it is a service we can provide (for example confirmation of purchase price if buying for cash or tenant buying from a landlord, either for own occupation or buy to let) or not (for example support an issue of shares, dispute, etc.). The valuation will be provided in pound sterling.

Special Assumptions and Departures from the Red Book

Any special assumptions and departures from RICS Valuation – Professional Standards will be as agreed at time of instruction and detailed within the report. Unless otherwise expressly agreed with us, while preparing the Report we'll assume the following. Of course, if the surveyor considers that any of these assumptions cannot reasonably be made, they will mention this in the report in anticipation that you will ensure that further investigations are undertaken by your legal or other professional advisers.

- the property (if for sale) is being sold offered with vacant possession;
- the property is connected to the mains services mentioned in the Report with appropriate rights on a basis that is both known and acceptable to you and that these, together with roads giving access, have been adopted;
- there are no onerous or unusual restrictions affecting the property and there are no adverse matters which usual and appropriate legal investigations and enquiries would reveal;
- all necessary building regulations, planning permissions and other consents have been obtained; all or any work has been carried out fully in compliance with those consents; and, in the case of new buildings, alterations or extensions, that an acceptable 10 year warranty and/or professional consultants certificate exists.
- the property is unaffected by any matters which would be revealed by a local search (or their equivalent in Scotland, Northern Ireland and Wales), or all other usual or necessary searches, enquiries or statutory notices and that neither the property, or its condition, its use or its intended use, is or will be, unlawful;
- no dangerous or harmful materials or techniques have been used in the construction of the property or its subsequent alteration, extension or refurbishment and there is no contamination or environmental hazards or dangers affecting the grounds, or the immediately vicinity, of the property; and

- an inspection of those parts of the property that we were either unable to see or not required to inspect would not have identified any defects that would, if seen, have been reported to you.

External Wall Systems on flats

If the block has any form of visible external wall system (cladding) we will report on it. Where the block does not have any form of external wall system we will provide a valuation without reference or regard to building regulation and all current fire safety standards applicable to such systems.

External wall systems have been commonly used in recent years in both the refurbishment and construction of blocks of flats. Some of these have been shown to increase fire and health risks due to the combustibility of the system or by aiding fire spread due to the gap between the system and the main building. This issue has received significant media attention in the last few years and has caused lenders and insurance companies to consider some of these properties to be unacceptable absent modifications.

Unfortunately, the type of system cannot be identified from a visual inspection. As a result, where the existence of such a system is reported, it is imperative that you and your legal advisers make further enquiries to satisfy yourself as to the type and suitability of the external wall system as this is outside the scope of this report.

For certain residential buildings with any form of external wall system it is a current requirement that, unless the building has been designed and built in accordance with the Building (Amendment) Regulations 2018 or later, a Fire Safety Certificate, from an assessor registered with a Fire Risk Assessment Competency Council approved body, is in place which confirms that the external wall system installed is satisfactory.

We will tell you if the building falls within the scope of the current RICS guidance (RICS Process) relating to external wall system (EWS) and if a Form EWS1 is required for valuation purposes. Where it is considered applicable, we will place reliance on Form EWS1.

We will assume, provided the quoted professional body of the signatory to form EWS1 is one of the RICS's relevant professional bodies, that the signatory is a competent person.

CSS is not responsible and has no liability to you for the content of or errors, omissions, or inaccuracies in Form EWS1 or any lack of expertise on the signatory's part and/or for any advice to you relating to the Form EWS1.

Where the property incorporates some form of external wall and/or cladding system but where the RICS Process is not considered to be applicable and/or there are no specific causes for concern; CSS will provide a valuation without sight of and/or placing reliance on any Form EWS1 on the assumption that the building owner/managing agents are compliant with their legal duties and whatever external wall and/or cladding system exists is fully compliant with and meets all applicable building regulation and all current fire safety standards. This is not a guarantee that works will not be required in future.

We will in respect of any properties which do incorporate some form of external wall system and which are considered in scope or of concern in accordance with relevant RICS guidance, but where a Form EWS1 is not available and we do not hold any information about the building or remedial works required, provide a valuation in accordance with relevant RICS guidance and on the following assumptions:

- The lease is a qualifying lease under The Building Safety Act 2022.
- Only costs capped in line with The Building Safety Act 2022 will be passed to leaseholders.
- Potential impacts on utility bills/costs due to remediation and on amenity during occupation unless instructed or provided information to the contrary, are assumed to be temporary and have been ignored for valuation purposes.
- Remedial works will be completed within an appropriate timeframe to an appropriate standard and shall comply with all applicable legal, regulatory and fire safety requirements.
- Future value and saleability may be affected in relation to the wider market until remedial/mitigation works are fully completed, but this impact is assumed to be temporary and has been ignored for valuation purposes.

It is crucial you and your legal advisers check to ensure an acceptable certificate exists if the building was not designed and constructed in accordance with the Building (Amendment) Regulations 2018 or later. Accordingly, you must appreciate that if this is not in fact the case the property may not be considered acceptable for any lending or insurance purposes and that this might give rise to liability for remediation costs and could impact on the property's marketability and value.

Dangerous materials, contamination and environmental issues

Making enquiries about contamination and other environmental dangers isn't covered by this service; however, if we suspect a problem we'll recommend further investigations.

Asbestos

We don't carry out an asbestos inspection or act as asbestos inspectors when inspecting properties that may fall within the Control of Asbestos Regulations 2012. However, we will report the suspected presence of asbestos-containing materials if the inspection identifies that possibility. With flats, we'll assume there is a 'dutyholder' (as defined in the Regulations), an asbestos register and an effective management plan all in place and none of these presents a significant risk to health or need any immediate payment. The dutyholder is not consulted by us.

Lead Pipes

We'll tell you if there are lead water supply pipes and give general advice if they can be seen. It's important you know that such materials are often concealed within the construction of the building. If we are concerned about lead pipes we can see, we may recommend a specialist inspection and report.

Radon

Radon is a colourless, odourless, radioactive gas. It forms naturally from the breaking down of radioactive elements, such as uranium, which are found in different amounts in soil and rock throughout the world. Radon gas in the soil and rock can move into the air and into underground water and surface water. We'll tell you if the property is in an area where, based on information

published by the Health Protection Agency, there is a risk of radon. In such cases, we'll advise further tests to establish the precise radon level.

Electromagnetic Fields (EMFs)

We'll tell you if there are transformer stations or overhead power lines that can be seen during the normal course of the inspection but we can't assess any possible effect on health. We're unable to report on any underground cables as these cannot be seen.

Status of Surveyor

External (as defined within the Red Book). This means we have no material links with you the client, an agent acting on your behalf or the subject of the assignment.

The report will be provided by an appropriately qualified RICS Registered Surveyor for and on behalf of Countrywide Surveying Services.

Conflicts of Interest

We are required by our professional body, the RICS, to inform you in respect of potential conflicts of interest, before you confirm our appointment.

The survey will be undertaken on the basis that we have no material involvement in the property and that no conflict of interest exists. If the above is not the case, we will contact you to agree instructions before issuing the report.

If we have also been instructed to provide your lender with a valuation and during the course of completing our inspection we identify a defect that could impact the Lender's decision to lend, we may wish to share that information with them. In accepting our Terms and Conditions you are consenting to allow us to share such information with your lender.

CSS are part of the Connells group - see this website for our list of brands <https://www.connellsgroup.co.uk/our-group/our-brands/>. It is therefore possible that a Connells group company is involved in the sale of the property that we are inspecting on your behalf. The selling agent acts for the vendor and CSS acts for you the purchaser. This will not affect the impartiality of the report prepared for you by us as all Connells companies operate independently of each other. Furthermore no information in respect of the property is shared between CSS and other group companies. CSS does not receive any fee or commission in relation to the sale of the property and therefore there is no conflict of interest.

Legal Liability

Our role is not one of legal adviser and we cannot comment on legal documents. If we identify issues legal advisers may need to investigate we'll tell you in the Report.

This Report is provided for your sole use and CSS accepts no liability to any third party. Further, this report has been prepared by a surveyor employed by CSS, and on behalf CSS. The statements and opinions expressed in this report are expressed on behalf of CSS, who accepts full responsibility for

these and by your acceptance of these Terms you acknowledge that the surveyor has no personal liability to you.

CSS accepts no liability for any errors or omissions in the report, or any matters affecting the property, as a result of our inability to inspect any relevant areas we would normally be expected to observe as part of the chosen level of service or for those matters which might have been revealed had a more in-depth level of service been chosen. Nor do we accept any liability where we have reasonably relied upon information provided to us by you (or any third party) which proves to be inaccurate.

You also accept that in making the assumptions set out in these Terms, CSS is under no obligation to inspect and/or verify any search results, planning consents, guarantees, indemnities or all and any other professional certificates. These are matters entirely for you and your legal advisors to follow up and we do not accept any responsibility if your or they fail to do this or inaccurately assess the impact of those documents.

You also acknowledge that where CSS makes any recommendation for further investigation, we accept no responsibility for either your failure to act on our advice or, if you do, for the suitability of who you appoint to pursue such investigations. Nor do we accept any liability for any issues affecting the property which should have been revealed had those recommended investigations been competently undertaken.

The Report has been prepared by a surveyor merely in their capacity as an employee or agent of a firm, company or other business entity (the “Company”). All the statements and opinions expressed in the Report are expressed on behalf of the relevant Company, who accepts full responsibility for these. The individual valuer who prepared the Report does not owe you a duty of care and has no personal liability or responsibility in respect of the Report. You agree that you will not bring any claim against any such individuals personally in connection with our services.

RICS recommends the use of liability caps to RICS regulated firms as a way in which to manage the risk in professional work. We aim to provide an efficient service, however, should the need arise, a copy of our complaints procedure is available from the Customer Care Team by emailing customercare@csscustomercare.co.uk.

Please note that CSS will not be liable for the first £500 of any compensation awarded in respect of any claim or complaint.

CSS’ liability to you arising out of or in any way connected with this report in the event of our breach of contract, negligence or any other default is limited to £100,000 (one hundred thousand pounds).

To the extent that any part of this notification is a restriction of liability within the meaning of the Unfair Contract Terms Act 1977 it does not apply to death or personal injury resulting from negligence, or actual fraud.

Payment

You will pay the agreed fee as set out in the Summary of Service. Under no circumstances will the report be released to you until payment has been received. In addition, we reserve the right not to undertake our inspection or discuss the findings of any inspection carried out until such time as the fee has been paid.

Where the fee is received before the report is ready for release, please note that the fee will not be treated as Client Money and will not therefore fall within the RICS Client Money Protection Scheme.

If your enquiry for our service came through a third party recommendation a referral fee of may be paid. The fee for our service is not affected by any referral fee payable.

Cancellation

We comply with the Consumer Contracts (Information, Cancellation and Additional Charges) Regulations 2013. By law you have 14 working days to cancel the service, starting on the day the contract is agreed. We may begin or deliver the service and report earlier than this because reports are often required quickly and/or access to the property has been given earlier. If you accept our Terms, you agree to us starting the service before the end of the 14 working day cancellation period and waive your right to cancel unless:

- The property has not been inspected, the report has not been issued and verbal advice has not been provided by our surveyor. A full refund can be provided.
- The property has been inspected, however the report or verbal advice has not been provided. If this is the case a refund of 50% can be provided.

Our verbal advice and report will not be provided to you until the agreed Terms have been returned. We strongly recommend that you do not commit to the proposed purchase until you have received the report and considered its contents. It is important to note that the report would not be issued following a legal commitment to purchase as the purpose of the report to provide you with information to make informed pre-purchase decisions will have been negated.

You can cancel the contract by contacting us using the Cancellation Form contained at Document 5.

The rights set out above are in addition to your legal rights. Advice about your legal rights is available from your local Citizens Advice Bureau or Trading Standards office.

Appointments

Regretfully, from time to time, appointments may need to be cancelled or rescheduled. Countrywide Surveying Services will always endeavour to arrange suitable cover and will seek to avoid cancellations wherever possible.

Third Party Information

It is agreed that the nature and source of any third party information that the client has provided is to be relied upon in the report.

Format of the report

We are dedicated to operating in a manner that safeguards and values our environment while minimising carbon emissions. This is why we primarily distribute reports via email. If you require a paper copy, this will incur an extra cost due to printing, we utilise environmentally sustainable paper from our suppliers.

Restrictions on disclosure

The Report will be for the stated purpose and is for the sole, private and confidential use of the customer named in the report. You must not reproduce it completely or in part. No part of the report may be included in any published document, circular or statement, nor published in any way without our written approval of the form and context in which it may appear.

Third parties (with the exception of your professional advisers) can't use it without our express written authority. Any other persons rely on the report at their own risk; we can't accept liability if it is used by anyone else.

As an RICS member, we may be required to disclose the Report to RICS Regulation as part of its work to ensure RICS professional standards are being maintained.

Complaints

We'll do our very best to provide excellent service. However, if you believe you have cause for complaint; CSS operate a complaints procedure in accordance with the requirements of the RICS. A copy of this procedure can be provided on request to: customercare@csscustomer care.co.uk

CSS subscribe to services provided by The Centre for Effective Dispute Resolution (CEDR) as an alternative dispute resolution service and reference is made to this within the complaints handling procedure.

As an RICS member, we may be required to disclose the report to RICS Regulation as part of its work to ensure that RICS professional standards are being maintained.

Countrywide Surveying Services have in place a professional indemnity insurance policy which complies with the requirements set by RICS under our Regulated by RICS status and provides cover throughout the UK.

CSS has in place a Quality Management System in accordance with ISO9001, externally Certified by SGS.

Governing Law and Rights Of Third Parties

This Agreement is governed and construed under English law and the English Courts shall have exclusive jurisdiction.

A person who is not a party to this Agreement shall have no rights under it and The Contract (Rights of Third Parties) Act 1999 shall not apply to this Agreement.

Further Information

Countrywide Surveying Services is a trading name for Countrywide Surveyors Limited, which is the legal party completing this agreement, registered under company no: 01954031.

Countrywide is regulated by RICS for the provision of surveying services. This means we agree to uphold the RICS Rules of Conduct for Firms and all other applicable mandatory professional practice requirements of RICS, which can be found at www.rics.org. As an RICS regulated firm we have committed to cooperating with RICS in ensuring compliance with its standards. The firm's nominated RICS Responsible Principal is Rebecca Freeman, Director of Field Operations, contact 01332 813096.

Your information is being collected and processed by Countrywide. All information will be processed in accordance with the Data Protection Act 2018. Full details of how we process your information can be found on our website <https://countrywidehomesurveys.co.uk/privacy-policy/>. Printed copies of our privacy notice are available on request. If you need to discuss how your information is being processed, please contact us at privacy@countrywide.co.uk.

Further information regarding Countrywide Surveying Services can be obtained by visiting the following website: www.countrywide.co.uk/surveying/

Countrywide Surveying Services Registered Office is: 2nd Floor, Boundary House, 4 County Place, Chelmsford, Essex, United Kingdom CM2 0RE Tel: 01908 465250 VAT No: 212551112

Document 5 – Cancellation Form

Please only complete this form if you wish to cancel the services ordered from Countrywide Surveying Services. Cancellation is subject to the terms as agreed within the signed Terms.

To:

Countrywide Surveying Services
Sales and Support Team
3rd Floor, Lee House
Great Bridgewater St
Manchester
M1 5RR

Telephone: 01332 813096

Email: Customercare@csscustomer care.co.uk

I/We [*] hereby give notice that I/we [*] wish to cancel my/our [*] contract for the provision of the following service: RICS Home Survey – Level 2 (survey and valuation)

Date you place the order: _____

Survey Address: _____

Postcode: _____

Client No. 1:

Name (Print): _____

Date: _____

Name (Signature): _____

Client No. 2:

Name (Print): _____

Date: _____

Name (Signature): _____

*Delete as appropriate